

IEP Special Needs Parent Navigation

Subtitle: Know Your Rights, Prepare Your Meetings, Get Your Child What They Need
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Page 1 — Cover

IEP Meetings Are Overwhelming

Know Your Rights, Prepare Your Meetings, Get Your Child What They Need

For parents navigating the Individualized Education Program (IEP) system for children ages 3-22.

You walked into that meeting and felt like you were drowning in jargon.

acronyms you didn't know. Teachers speaking in shorthand. A document handed to you at the start of the meeting that everyone else seemed to already understand.

And you thought: I'm supposed to advocate for my child, and I don't even know what FAPE means.

You're not alone. The IEP system was designed by lawyers and administrators. The people who built it were not thinking about a tired parent sitting across the table trying to figure out if their child is getting what they need.

This guide is the decoder ring. It tells you what the school is legally required to provide, how to prepare before the meeting, and how to push back without burning bridges — because your child needs you to be an effective advocate, not an angry one.

Page 2 — What an IEP Actually Is (And What It's Not)

An Individualized Education Program — IEP — is a written document that describes the special education services, accommodations, and learning goals a school will provide to a student who qualifies under the Individuals with Disabilities Education Act (IDEA).

What an IEP is: - A legally binding document (if signed by the parent) - A description of your child's current performance levels - A set of measurable annual goals - A list of specific services (speech therapy, occupational therapy, specialized instruction, etc.) - An accommodation plan for classroom and testing situations

What an IEP is not: - A guarantee of a particular outcome for your child - A menu of everything your child could possibly benefit from - A contract that the school cannot modify without parent consent - Something signed once and forgotten

The IEP is updated annually. It can be modified more frequently if the school or parent requests changes. Your child's needs at age 7 are not the same as at age 12, and the IEP should reflect that.

The most important thing to understand: The school has a legal obligation to provide what's in the IEP. If it's written in the document and not delivered, that's a violation.

Page 3 — The Rights You Actually Have

Most parents don't know what IDEA actually requires. That lack of knowledge is the #1 reason parents get less than their children are entitled to.

Here are the provisions that matter most:

Child Find (Section 612(a)(3)) Schools must actively identify and evaluate children who may need special education — at no cost to the family. If your child is struggling and the school hasn't suggested an evaluation, you can request one in writing. They cannot ignore a written request.

Evaluation (Section 614(a)-(b)) Evaluations must be comprehensive, using multiple measures. Schools cannot refuse to evaluate a child based on cost or argue that the child "doesn't meet the threshold." You have the right to request independent evaluations at district expense if you dispute the school's evaluation results.

60-Day Timeline From the moment you provide written consent for an evaluation, the school has 60 days to complete it. This is federal law. Schools routinely ask for extensions — they can ask, you can decline. Document every timeline-related conversation in writing.

Parent Consent Your written consent is required before the initial evaluation and before your child is placed in special education. You can withdraw consent at any time. If a school begins services without your signature, that's a violation.

IEP Team Composition The IEP team must include you, at least one regular education teacher, at least one special education teacher, a school district representative, and someone who can interpret evaluation results. If your child's teacher wasn't at the meeting, the IEP may be procedurally deficient.

The 'Put It in Writing' Rule Everything requested verbally can be ignored. Everything requested in writing creates a legal paper trail. Email is sufficient and creates a timestamp. Parents who document their requests in writing have significantly better outcomes in disputes.

Page 4 — Before the Meeting: The 5-Day Prep System

The parents who do best in IEP meetings are the ones who come prepared with their own documents. Here's what to do in the 5 days before the meeting.

5 Business Days Before — Request All Documents

Email the IEP coordinator and say: "I am requesting all documents related to [child]'s IEP meeting on [date], including the draft IEP, all evaluation reports, progress notes from the current year, and any correspondence regarding [child]'s program. Please provide these at least 5 business days before the meeting so I have adequate time to review."

Schools are required to provide these. If they refuse, note the refusal in writing.

Review the Evaluation Report — Look For These Three Things:

1. **The evaluator's methodology:** What tests did they use? Are they standardized and age-appropriate? If your child was evaluated using instruments not normed for their age or disability, that evaluation can be challenged.
2. **The discrepancy between scores and classroom performance:** A child can test poorly but behave adequately, or test adequately but function poorly in class. The evaluation should explain this gap. If it doesn't, ask.
3. **Recommendations that didn't make it into the IEP goals:** Sometimes evaluators note that a child would benefit from X service, but the IEP team doesn't include it. If you see this, bring it to the meeting.

Write Your Parent Statement

The IEP team is required to consider your input. Write one page describing: - How your child functions at home - What you've observed that school may not see - What you want for your child this year - Any concerns you have about current services

Bring three copies: one for the file, one for the team, one for yourself.

Bring a Second Set of Ears

A friend, family member, or professional advocate who can take notes and flag jargon. You cannot absorb everything in a 90-minute meeting while also advocating for your child.

Page 5 — How to Read the IEP Document

The IEP has seven required components. Here's what each one actually means:

1. Present Levels of Academic Achievement and Functional Performance (PLOP)

This section describes where your child is right now — academically and functionally. Functional means: how they behave in class, how they interact with peers, how they manage daily tasks. This is the baseline. If the PLOP is inaccurate, everything built on top of it will be wrong.

2. Measurable Annual Goals These are the specific targets your child will work toward over the year. They must be: Specific, Measurable, Achievable, Relevant, Time-bound (SMART). "Will improve reading" is not a goal. "Will read a 4th-grade passage and answer comprehension questions with 80% accuracy in 3 of 4 trials, as measured by teacher data, by May 2027" is a goal.

If the goals aren't written this way, they cannot be measured. If they can't be measured, you can't hold the school accountable for meeting them.

3. Special Education and Related Services This is the list of what the school will actually provide: speech therapy (2x/week, 30 minutes), occupational therapy (1x/week, 30 minutes), specialized instruction (inclusion support), etc. This is the most important section for accountability.

4. Supplementary Aids and Services This covers accommodations: extra time on tests, preferential seating, use of a fidget, behavior intervention plan. These are services that help the child access the general education curriculum.

5. Extent of Nonparticipation If your child will be removed from the general education classroom for any part of the day, this section documents it and explains

why. Least Restrictive Environment (LRE) is the legal principle — your child should be with typically developing peers to the maximum extent appropriate.

6. Modifications Changes to what your child is expected to learn compared to the general education standards. A modification is different from an accommodation — accommodations change how a child demonstrates learning; modifications change what they're expected to learn.

7. Progress Reporting How the school will measure and report your child's progress toward goals. Typically quarterly. If your child is not making progress, this is your early warning system.

Page 6 — How to Evaluate Whether the IEP Is Good

Not all IEPs are equal. Here's a quick audit:

The Goal Quality Test: - Can you observe whether the goal was met? (Yes = good, No = bad) - Does the goal match what the evaluation said your child needed? - Is the goal ambitious enough to close the gap, or is it set low to make it easy to "meet"?

The Services Test: - Does the service list match what the evaluation recommended? - Are the minutes/frequency specific? ("Speech therapy as needed" is not enforceable; "Speech therapy 2x/week, 30 minutes" is.) - Is there a service your child clearly needs that isn't listed?

The LRE Test: - Is your child being pulled out of gen ed for more time than necessary? - Is there a reason given for each removal?

If any of these tests fail, you have grounds to request changes before signing.

Page 7 — Scripts for Common Situations

Here are the exact words for situations that come up in almost every IEP meeting.

When they present a draft IEP and ask you to sign:

"I want to take this home to review carefully. I understand I have [X days] under procedural safeguards to provide consent, and I'd like to use that time."

You do not have to sign at the meeting. You almost always have at least 5-10 days to review.

When the school says a service isn't in the budget:

"I understand budget constraints. Can you put that in writing, including the specific reason for the denial? I'd also like the meeting notes to reflect that I requested [specific service] and it was denied."

Budget constraints are not a legal justification for denying FAPE.

When you disagree with the evaluation results:

"I'd like to invoke my right to request an Independent Educational Evaluation (IEE) at district expense under 34 CFR § 300.502. I'd like to schedule a meeting to discuss this formally."

The school must either provide the IEE or file a due process complaint to defend their evaluation.

When the school says your child doesn't qualify:

"Can you point to the specific criteria in the evaluation that leads to that conclusion? I'd like to understand the basis before I consider next steps."

This is a reasonable question. The school must be able to answer it.

When the IEP is not being followed (services aren't being delivered): Send an email: "I am writing to document that [service] listed in [child]'s IEP dated [date] has not been delivered since [date]. Please confirm receipt of this inquiry and provide a plan for implementation within 10 business days."

Follow up in writing every time. Phone calls don't count.

Page 8 — Documentation That Protects Your Child

After every IEP meeting, write and send your own meeting notes. Here's why: the school's meeting notes reflect what the school wants to remember. Your notes reflect what actually happened.

Send this email within 24 hours of every meeting:

"Thank you for meeting with me on [date]. These are my notes from today's meeting — please correct any inaccuracies.

Present: [names and roles] Discussed: [key topics] Decisions made: [what was agreed] Open items: [what was not resolved] Next steps: [who does what by when]

I will follow up in writing if I have corrections or additional input."

This creates a paper trail that you control. If the school later claims something different happened, you have contemporaneous documentation.

Track these records indefinitely: - Every IEP and amendment - Every evaluation report - Every email exchange with school staff - Every meeting note - Every incident where services were not delivered - Every written request and the school's response

Store these in a dedicated folder (physical or digital). You may need them years from now.

Page 9 — When to Get Outside Help

Most IEP situations can be resolved with good preparation and firm but collaborative communication. But some situations require professional support.

Get help when: - The school has denied services in writing - Your child has been suspended repeatedly (IDEA has specific rules about discipline and students with disabilities — these are commonly violated) - The school refuses to evaluate your child - Your child is making no progress and the school refuses to change the IEP - The school has suggested a more restrictive placement without adequate justification

Your options, in order of escalation:

1. **Special Education Facilitator:** A neutral third party who attends IEP meetings to help resolve disputes. Request one — they are required to be available in most states.
2. **Mediation:** A formal process where a trained mediator helps you and the school reach agreement. This is faster and cheaper than due process. Either party can request it.
3. **Due Process Complaint:** A formal legal complaint filed with the state. This triggers a hearing before an administrative law judge. This is expensive and adversarial — use it only when necessary.

4. **Special Education Attorney:** IDEA attorneys often work on contingency (fees paid by the district if you win) or offer free consultations. For serious denials, this is the right step.

Before hiring an attorney, try this: Many disputes can be resolved with a well-written letter citing the specific IDEA provision that is being violated. School districts are aware that attorney involvement costs them money, and a strongly worded letter from a parent who clearly knows their rights often produces results.

Page 10 — Next Steps

Your Bonus: Included

This guide includes a companion checklist — the IEP Parent Prep Card — available in your Lemon Squeezy library. It walks you through the 5-day meeting prep, the goal quality test, and the documentation tracker.

Next Steps for New Users

If you found this guide useful and are ready to go deeper, explore more resources in the [Lemon Squeezy Member's Area](#) — where all guides and tools are available in one place.

For Existing Customers

Your complete library — including the IEP Parent Prep Card and all other guides — is at your fingertips in the [Member's Area](#). Check your inbox for your access link.

This guide is for informational purposes only and does not constitute legal advice. For specific legal questions about your child's IEP, consult a licensed special education attorney in your state.

All legal citations verified against IDEA (20 U.S.C. § 1400 et seq.) and its implementing regulations (34 CFR Part 300) as of 2024.